

CV-24-002542 VIERRA, LANA vs VALVERDE, CONNIE – Defendant Connie Valverde’s Motion Requesting Reconsideration of Application for Good Faith Settlement Determination [C.C.P. 877.6 (A)(2)] – CONTINUED to September 11, 2026, at 8:30 am in Department 21.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The motion is well-taken. Although Plaintiff dismissed Valverde from the complaint before Valverde filed the application for determination of good faith settlement, Valverde remains a cross-defendant in the action and contends that a good-faith determination remains necessary in light of the pending cross-claims. However, the Court’s file does not reflect that the motion for reconsideration was served on all remaining parties, or, alternatively, does not contain a proof of service establishing such service. Due process requires that all affected parties receive notice and an opportunity to be heard before the Court rules on the motion. If proof of proper service is filed, the Court will consider the motion on the continued hearing date.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: efb4c4f3b7fbb2947fa06d6f9dae88d53b4b6c702d68e1d73150e045b726b4992

CV-24-002542 – VIERRA, LANA vs VALVERDE, CONNIE – Defendant Connie Valverde’s Motion Requesting Reconsideration of Application for Good Faith Settlement Determination [C.C.P. 877.6 (A)(2)] – CONTINUED to September 11, 2026, at 8:30 am in Department 21.

The motion is well-taken.

Although Plaintiff dismissed Valverde from the complaint before Valverde filed the application for determination of good faith settlement, Valverde remains a cross-defendant in the action and contends that a good-faith determination remains necessary in light of the pending cross-claims.

However, the Court’s file does not reflect that the motion for reconsideration was served on all remaining parties, or, alternatively, does not contain a proof of service establishing such service. Due process requires that all affected parties receive notice and an opportunity to be heard before the Court rules on the motion.

If proof of proper service is filed, the Court will consider the motion on the continued hearing date.